



CHAPTER 111.

An Act to modify the provisions of the Education Act, 1936, in relation to the coming into operation of sections one to six of that Act, and for purposes connected with the said modification.

[12th October 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Sections one to six of the Education Act, 1936 (which provide, subject to certain exceptions, for the raising of the compulsory school age to fifteen, and for matters connected therewith) shall, notwithstanding the provisions of subsection (2) of section sixteen of that Act, be deemed not to have come into operation on the first day of September nineteen hundred and thirty-nine, but shall come into operation upon such date after the commencement of this Act as the Board of Education may by order determine; and accordingly—

Suspension of operation of ss. 1 to 6 of Education Act, 1936.
26 Geo. 5. & 1 Edw. 8. c. 41.

- (a) the said sections one to six and subsection (2) of the said section sixteen shall have effect, and shall be deemed always to have had effect, as if for any reference therein to the appointed

day there were substituted a reference to such date as may be so determined; and

- (b) subsection (4) of section one of the said Act shall have effect as if for the reference therein to the first day of September nineteen hundred and twenty-five there were substituted a reference to the date of which the date determined as aforesaid is the fourteenth anniversary.

11 & 12
Geo. 5. c. 51.

(2) Any byelaw made under Part IV of the Education Act, 1921, which was sanctioned by the Board of Education on or after the first day of September nineteen hundred and thirty-nine and before the commencement of this Act, or which came into operation on or after the said day and before the commencement of this Act, shall be deemed never to have been made.

(3) Any liability incurred before the commencement of this Act by a local education authority, being a liability which would have been lawfully incurred if this Act had not been passed, shall, notwithstanding anything in this section, be deemed to have been lawfully incurred.

Short title
and citation.

2. This Act may be cited as the Education (Emergency) Act, 1939, and this Act and the Education Acts, 1921 to 1937, may be cited together as the Education Acts, 1921 to 1939.

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